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CHAPTER 17

CONFLICT RESOLUTION: THEORETICAL AND PRACTICAL ISSUES

Ann Sanson and Di Bretherton

INTRODUCTION

Conflict resolution is a broad term referring to a range of forms of resolving disagreements which may be manifested at different levels of society. Research into conflict resolution fits into our definition of *peace psychology* in that it seeks to elucidate psychological processes involved in the prevention and mitigation of destructive conflict (see introductory chapter). The practice of conflict resolution aims to utilize knowledge of psychological processes to *maximize the positive potential* inherent in a conflict and to *prevent its destructive consequences*.

Conflict resolution provides techniques to deal with disputes in a manner which is nonviolent, avoids dominance or oppression by one party over the other, and, rather than exploiting one party, aims to meet the human needs of all. In relation to the positive mission of peace psychology (Christie, 1997), conflict resolution can be seen as a set of strategies which can be used to foster the satisfaction of human needs for security, identity, self-determination and

quality of life for all people involved in a conflict. An important feature of conflict resolution within the arena of peace psychology is that it bridges theory and practice, moving from a theoretical understanding of psychological processes into practical strategies for translating ideals into realities in a wide number of arenas. Furthermore it does this in situations which are fraught with difficulty and often seem to tax our commitment to peace values.

There are models of conflict resolution which are descriptive, outlining how negotiators and mediators actually do behave, and models which are prescriptive, recommending the adoption of a set of procedures which negotiators and mediators ought to use to resolve conflicts. We will not attempt to describe the substantial literature that exists on the theory and practice of conflict resolution. Rather, our aims in this chapter are to identify how conflict resolution differs from other approaches to conflict, to discuss the underlying principles, to present one model, and to highlight points of contact and divergence between this and other models. We will go on to discuss the extent to which such a model can be applied, considering whether the Western origins of most conflict resolution models compromise their effectiveness for conflicts in other cultures. We will explore some of the views of knowledge which underlie conflict resolution research and practice. We will end by pointing to some of the areas where further development is necessary if conflict resolution is to contribute to the peaceful resolution of the complex problems of the twenty-first century.

WHAT IS CONFLICT?

There are multiple *definitions of conflict*, including perceived differences in interests, views, or goals (Deutsch, 1973); opposing preferences (Carnevale & Pruitt, 1992); a belief that the parties' current aspirations cannot be achieved simultaneously (Rubin, Pruitt, & Kim, 1994); and the

process which begins when one party perceives that another has frustrated, or is about to frustrate, some concern of theirs.

While for many people the idea of conflict has negative connotations, it can be argued that conflict itself is better seen as “value-neutral.” Whether *outcomes are positive or negative* will depend on the way in which the conflict is handled (Deutsch, 1973). Conflict *can* have damaging consequences. It can create suspicion and distrust, obstruct cooperative action and damage relationships, escalate differences in positions, and even lead to violent confrontation. But, conflict can sometimes have *positive* effects. It can open up issues for analysis, leading to greater clarity and improving the quality of problem-solving. It can encourage more spontaneous and open communication leading to growth in the parties and in their relationship.

In conflict resolution, the aim is not to avoid conflict but rather to deal with it in a way which minimizes the negative impact and maximizes the positive potential inherent in conflict within the framework of the values of peace. That is, both the solutions which are sought, and the means by which they are sought, are judged against the criteria of being *against* violence, dominance, oppression, and exploitation, and *for* the satisfaction of human needs for security, identity, self determination and quality of life for all people.

The course of any conflict, be it between individuals, groups, or nations, will be shaped by the *social context* in which it takes place. From an ecological perspective, conflict can be analyzed at a number of different levels, which, though differing in complexity, can have underlying similarities. “Whether we are dealing with interpersonal, community, ethnic [or] international relations, we are dealing with the same ontological needs of people, requiring the same processes of conflict resolution” (Burton, 1991, p. 63). Systematic research on conflict and

its resolution has occurred at all levels but most has focused on organizational settings (especially relating to industrial relations), international conflicts, and more recently interpersonal conflicts and disputes (e.g., neighborhood disputes, marital conflict). As research develops in these separate streams, further studies will be needed to check the assumption of the invariance of processes across fields. The variety of terms deriving from different approaches can be confusing.

THE PRINCIPLES OF CONFLICT RESOLUTION

Four basic principles underlie most approaches to conflict resolution: (1) conflict resolution is a cooperative endeavor, (2) the solutions sought are integrative ones, (3) the foundation is an understanding of all parties' interests, and (4) both the process and its outcome are nonviolent. We will discuss each of these principles, illustrating both the principles and the practice of conflict resolution, using the following scenario:

Mark, Tran, Saida, and Jane are students who share a house. They each have their own room, which includes a desk and study area, but have a communal lounge room, kitchen, and bathroom. One evening Mark asks his new girlfriend, Tracy, whom he wants to impress, home for an evening meal. Unfortunately the kitchen is very untidy. There are unwashed dishes piled high in the sink. A distasteful fishy odor emanates from the trash, which has not been emptied for some time. The refrigerator needs defrosting and is stuffed full of food which is past its recommended "use by" date. Mark is embarrassed, and Tracy suggests they go out to eat.

Cooperation

A key feature of conflict resolution is the focus on *cooperation* rather than competition. The parties see the problem facing them as one on which they can collaborate to find a solution that suits them both. In our scenario, it is apparent that to make their living arrangements work, the students will need to cooperate. If in his anger Mark uses hostile strategies, he may well evoke hostility from the others.

Integrative Solutions

Follett (1940) first referred to the search for *integrative solutions*, that is, solutions which meet the interests and needs of all parties, by offering a personal anecdote. She and another woman disagreed about whether to open or close a window. The compromise solution, that is, having it half open, would satisfy neither of them. Eventually they discovered that one wanted the window open to increase the fresh air, while the other wanted it closed to prevent a draught, which led to the cooperative, integrative or “win-win” solution of opening a window in an adjoining room. This notion was later elaborated as integrative bargaining by Walton and McKersie (1965)—the process by which parties attempt to explore options to increase the size of the joint gain without respect to the division of payoffs.

When thinking about the solutions to the problem, Mark should not think only of compromises, such as agreeing that the dishes are to be washed every second day. By enlisting the support of the others and approaching the conflict with an open mind, a more creative solution might be found.

Integrative bargaining most commonly occurs either as a direct *negotiation* between the parties in conflict, or through *mediation* where a neutral third party is brought in to facilitate the process. Of course negotiators are often motivated to achieve a solution where they “win” and the other party “loses” (win-lose, zero sum, or distributive negotiations), but the term *conflict resolution* normally covers only negotiations where the goal is an integrative (or win-win) solution. While it is possible to think of other strategies for conflict resolution, mediation and integrative negotiation are the most often used and will be the main foci of discussion here.

Although an issue such as household chores would as a rule be a matter for negotiation, there might be instances where mediation is called for. If, for example, there is a history of disputes in the group, the students could decide to ask a mutual friend to act as a third party during discussions.

To help clarify what is distinctive about the cooperative, integrative process of problemsolving which characterizes conflict resolution, it may be useful to contrast it with two other approaches: a *rights-based* approach and a *power-based* approach (Ury et al., 1989; Wertheim et al., 1998). In the rights-based approach, decisions are made by reference to legal rules. Such methods include formally taking the conflict to a court of law for judgement, or referring it to an arbitrator who has the power to impose a decision. Informally, a rights-based approach might consist of arguing for a favored position because “it is my right.” In each case, the conflict is set up so a party either wins or loses the case, constructing a win-lose situation.

Mark might assert his right to be able to bring a friend home without feeling embarrassed, or find out whose turn it was to wash the dishes so as to argue that he or she is at fault. Or he might argue that a lack of hygiene is wrong, and so on.

We might well sympathize with him and think he has a point but would the other students think so? Would this approach motivate the other students to take responsibility for finding a cooperative solution? Or would it begin an argument about the rights and wrongs of the situation?

An important distinction between a cooperative and a rights-based approach is in terms of the *location of control*: control for defining the problem, for determining the process and for reaching the solution. In a rights-based approach, definition of the issue(s) to be decided, the process of reaching settlement, and the solution are all in the hands of the arbitrator. In contrast, in cooperative negotiation, the control lies entirely with the parties themselves. They decide how to define the conflict, determine how, where, when and how often negotiations should take place, and mutually agree upon the final solution. In mediation, although the neutral third party controls the process, the definition of the conflict and the finding of a solution are still largely in the hands of the parties themselves.

In the power-based approach to conflict, a party attempts to resolve the conflict in its own favor through assertion of power over the other party. The source of power, and how it is used, will vary from one context to another. For example, it may be military or economic power in international contexts, the power to “hire and fire” in organizational settings, or physical strength or emotional coercion in interpersonal conflicts. Violence, domination, oppression, and exploitation, the abuses mentioned in our definition of peace psychology, might be seen as abuses of power over others. Conflict resolution not only argues specifically against these abuses but more fundamentally rejects the use of power as an approach to conflict.

In his initial anger Mark might well use a power-based approach.

He could yell at Jane, threaten to say insulting things about Tran to Tran's girlfriend, slam doors, tip the rubbish into Saida's bedroom, and the like.

An Interest-based Approach

In both rights-based and power-based methods, each party assumes that they know what is the "best" or "winning" solution for them. The process of resolution revolves around each party trying to impose its solution or position on the other party. However, these positions are only one possible solution. Positional bargaining locks both parties into contemplation of only their opposing positions, discourages any analysis of underlying issues, and discourages the emergence of more creative solutions. The best solution that can be hoped for is a compromise between each party's initial positions.

In contrast, conflict resolution approaches focus on the deeper issues or interests underlying the conflict, pursuing a new and creative solution that is better than either of the parties' initial positions. This is known as an *interest-based* approach. The underlying interests behind a conflict can include needs, wants, fears and concerns, and emerge through a process of "unpacking" the conflict and each party's initial positions.

Ury, Brett and Goldberg (1989) argue persuasively that the costs of using power-and rightsbased methods for resolving conflicts are high, and the probability of achieving a lasting settlement is low. Rights-based approaches typically entail high financial and time-related costs, since they tend to involve legal processes, and they impose significant emotional strains on participants. Because the conflict tends to be narrowly defined in legalistic terms, underlying issues are unlikely to be dealt with, and, because the solution is imposed by a third party and is typically distributive (win-lose) in form, at least one of the parties is likely to be unhappy with

the solution and eager to reopen the conflict at a later date. The costs of using power-based methods are also typically high in both financial and emotional terms, and the process tends to be protracted in terms of time. In the worst case, of course, they are expensive also in terms of loss of life, property, and environmental damage, as well as injuring innocent third parties.

In contrast, the process of working together on the problem, exploring underlying interests and finding a solution which meets both parties' main interests involves little or no financial cost, less emotional cost, and tends to take less time than the other approaches. Further, it often strengthens rather than damages relationships, and, since it deals with the underlying sources of the conflict, it is likely to result in a long-lasting agreement that is satisfactory to both parties. Ury et al. (1989) conclude that, "in general, it is less costly and more rewarding to focus on interests than to focus on rights, which in turn is less costly and more rewarding than to focus on power" (p.169).

A commitment to interest-based methods does not imply that rights are irrelevant. Rightsbased procedures may sometimes be preferable, from an individual and/or societal perspective, on matters of principle. For example, the 1992 "Mabo" Australian High Court decision granting land rights to the traditional owners of Murray Island effectively overturned the doctrine of "terra nullius" ("empty land") which had previously been used to justify denial of land rights to Australian indigenous people (Pearson, 1996). This legal decision had greater weight of authority than a negotiated agreement between the government and the Murray Islanders, as well as going beyond this particular case to have deep significance for all of Australia.

Nonviolence

Implicit in the discussion thus far is another key principle underlying conflict resolution: a commitment to the values of peace and nonviolence. Although one commonly talks about “conflict resolution,” what is usually implicit is more fully expressed as “nonviolent conflict resolution.” “Resolving” a conflict through the use of arms, for example, is not considered a form of conflict resolution.

Extensive bodies of literature on violence, for example in psychology, criminology, and law, can inform our thinking about the nature and incidence of violence and how it might be prevented or responded to. The peace theorist Johan Galtung (1969; see also Galtung & Tschudi in this volume) suggests that violence is a structural phenomenon, a feature of social arrangements characterized by dominance, oppression, exploitation, and exclusion. Recognizing the structural nature of violence, a major feature of this volume, brings into focus the importance of attending to patterns of inequality such as gender, class, and race. Processes which settle immediate problems but serve, in the longer term, to erode human rights, may appear efficient but would not be considered conflict resolution.

FROM PRINCIPLES TO PRACTICE

As a way of showing how the basic principles articulated above can be put into practice in the resolution of conflicts, we present here one model of *interest-based* conflict resolution. The

model depicts certain key stages in the interest-based approach to conflict resolution that merit elaboration.¹ The basic model is represented in Figure 17.1. The feedback loops should be noted.

Building a Cooperative Orientation

Because cooperation is a key feature of conflict resolution, a preliminary task before commencing negotiation (or mediation) is to ensure that parties are in a frame of mind to work together for an integrative solution. According to the *dual-concern model* (Ruble & Thomas, 1976; Lewicki et al., 1992), not all orientations to conflicts lean towards integrative solutions. An individualistic orientation (exclusive concern with one's own outcomes), an altruistic orientation (exclusive concern for the other party's outcomes) or a competitive orientation (characterized by a desire to do better than other party) are mismatched with the search for integrative solutions. A cooperative orientation (concern for both outcomes) is needed.

Most negotiators enter negotiation believing one party will win, the other lose, and fail to notice integrative possibilities (Thompson, 1990). To build win-win expectancies, negotiators are encouraged to view conflict as normal, inevitable, and solvable, with the viewpoint that it is possible and preferable for all parties to “win.” They should note that initial cooperative moves by one party help induce cooperation from the other party, in line with Deutsch's (1973) “crude law of social relations”: Competition leads to more competition; cooperation leads to more cooperation.

¹ The model is based on the work of Psychologists for the Promotion of World Peace, an interest group of the Australian Psychological Society and Wertheim and her colleagues (Wertheim et al., 1998) who were in turn inspired by the Harvard Negotiation Project approach (Fisher & Ury, 1996). Our model contains some modifications, extensions, and variations in emphasis based upon our practical experience in conflict resolution in the Asia Pacific region.

To build a cooperative orientation Mark could begin by resisting the temptation to yell at his housemates and organize a time for them to talk about the situation. In introducing the issue, he could use language which emphasizes the belief that a mutually satisfactory outcome can be found. For example, rather than talking about “my girlfriend” he could talk about “our visitors.”

Active Listening for Interests

An interest-based approach requires that both parties are willing and able to take the perspective of the other party, and this requires careful listening. As noted above, most parties enter a dispute or conflict with a position, their desired outcome for the conflict. In the conflict resolution process, these “positions” in the conflict are first acknowledged, but then the interests underlying those positions are explored (Burton, 1987; Fisher & Ury, 1996). Good active listening skills, involving empathy, reflection, summarizing, and attentive body language (Bolton, 1992), are needed by the “listening” party in order to help the other party articulate the interests involved and to recognize that they have been heard.

Before he can find a solution, Mark needs more information. Active listening will help him answer questions such as the following: How do the others feel about the state of the kitchen? What are their needs? Perhaps some members of the group feel that they have in the past done all the work and have given up trying.

Analysis and Communication of One’s Own Needs

The initial impetus to use a conflict resolution approach often comes from one party, and there is a good chance the second party may not be a skilled active listener. Thus, the first party will need to articulate its interests without relying on help from the second party. Communicating one’s

own interests requires some careful thinking and analysis of one's own interests, often better done in advance. To avoid blaming or criticism of the other party, it is often helpful to use "I statements" ("One thing I want/need is...", "I am worried about..."), which focus attention on the interests involved, rather than "you" statements ("You always/never..."), which can produce defensiveness. Because high information exchange promotes the development of integrative solutions (Carnevale & Pruitt, 1992), parties are encouraged to be as open as possible.

Mark needs to analyze and communicate his own needs. For example he might say, "I was embarrassed when Tracy came into the kitchen. I'm afraid that she won't go out with me again. There were unwashed dishes piled high in the sink, a smell from the trash, and the 'fridge was full of old food. I want to be able to bring people home and have a relaxed time with them in pleasant surroundings."

Brainstorming

A basic assumption of a conflict resolution approach is that the optimal solution is created from a consideration of both sets of interests. Further, joint ownership of the solution leads to more satisfaction with it (Wertheim et al., 1998). A joint creative problem-solving process is therefore recommended. After both parties' interests have been identified and listed, they are encouraged to generate as many creative options for resolving the conflict as possible, using brainstorming principles (Burton, 1987). This requires creativity, flexibility, and openness of thinking.

D'Zurilla (1988) identified three principles for generating creative options: deferrment of judgment (to prevent premature rejection, to protect the relationship between parties, and because even poor-quality ideas can stimulate better ones); quantity (because later ideas tend to include those of higher quality); and variety. Therefore, parties are instructed to devise as many ideas as

possible, including wild and humorous ones, without evaluating or criticizing any. Brainstorming should not stop until each interest has been addressed in at least one brainstormed idea.

Some of the ideas that the group might brainstorm are: *schedule roster turns at housework, use paper plates, buy better rubbish bins, hire someone to clean up the house, and decide to learn to live with the mess.*

The Role of Emotions

Many authors have noted that *emotions* play a central role in problem-solving and conflict resolution, with the potential to derail the process at any stage (D’Zurilla, 1988). However, as Littlefield et al. (1993) note, little attention has been given to the specific ways in which emotions affect the conflict resolution process. Several authors (e.g., Fisher & Ury, 1996) appear to adopt a “hydraulic theory” of emotions, in which feelings “build up,” creating pressure or tension which needs to be released or vented. They therefore advocate giving parties the opportunity to “vent” before proceeding with negotiations. Others (e.g., Wertheim et al., 1998) point out that negative emotions (hurt, anger, depression, fear, anxiety) tend to fix attention on the people involved instead of on the problem and its solution, and therefore they should be controlled and expressed only in a responsible manner.

Mark might tell himself to stay calm and not get too angry. Sharing his sense of vulnerability and insecurity, and his need to impress his girlfriend, is likely to elicit empathy and cooperation from the others whereas anger and blame might provoke a hostile response.

While strong emotions can disrupt the conflict resolution process, the expression of emotion may provide valuable information about a person’s inner state. Recognizing the emotional

signals can help parties come to an understanding of the conflict and the interests behind it.

Acknowledging feelings is a crucial part of active listening; if only “facts” are heard, the speaker rarely feels fully understood. Feeling may also play a more positive role. Feelings of hope, trust, and goodwill, for example, are assets. Therefore, listening for feelings, acknowledging them, and encouraging their responsible expression is desirable.

Creating Solutions

The final stage involves combining those options which meet the key interests of the parties into integrative or win-win solutions. Forming multiple solutions increase the likelihood that one acceptable to everyone will be found. This stage requires a more disciplined and logical form of problem-solving. Fisher and Ury (1996), Pruitt and Rubin (1986), and Wertheim et al. (1998) have all suggested various strategies for finding integrative solutions, for example: bridging solutions, which go beyond the original positions of the parties to find new solutions; “expanding the pie” where the apparently limited resource “pie” can be “expanded” by including other previously unconsidered resources; cost-cutting to limit the costs of the party who is achieving less; compensation by providing another valued outcome for the “losing” party; and log-rolling, where each party concedes on their lesser-valued issues. If an integrative solution cannot be found, it may be necessary to loop back to previous stages, e.g., to see if some key interests were not identified.

The group might decide to have a job roster (with the consequences of failure to meet responsibilities clearly understood) as a long-term solution. In the meantime, they may decide to have a meal together once a week during which they can discuss problems before they reach frustrating levels.

In terms of the positive value of conflict, they might have discovered that one of the students has an under-recognized culinary talent, or knows of cheaper vegetable markets. Through the process of solving their problem together, their relationships might be strengthened.

The Role of Best Alternatives to a Negotiated Agreement (BATNAs)

Despite good intentions, negotiations do not always lead to mutually acceptable solutions. Fisher and Ury (1990) recommend considering in advance what to do if negotiations fail, by developing a “best alternative to a negotiated agreement” or BATNA. A BATNA is the best solution the party can develop which does not rely on any cooperation from the other party, and it is developed using very similar methods to reaching a win-win solution except that it is done alone (or with someone other than the other party). As Wertheim et al. (1998) note, focusing on your BATNA involves shifting from an integrative, cooperative frame of mind to a distributive, competitive one, and may therefore slow or stop progress on the conflict resolution process. We think a BATNA should not be formulated as a routine precaution, but only when serious difficulties in the negotiations suggest it is needed.

Mark might decide that if the group cannot arrive at a fair system for doing the chores then he would be better off to move out. Thus his BATNA is to find new accommodations.

Mediation: The Role of Third Parties

The model in Figure 17.1 is designed principally for negotiation between two or more parties. However, many of the processes apply equally to *mediation*, where a neutral third party is

involved, controlling the process but not the content or the outcome of the negotiation. Carnevale and Pruitt (1992) note that mediation involves identifying issues; uncovering underlying interests and concerns; setting an agenda; packaging; sequencing; and prioritizing issues; interpreting and shaping proposals; and making suggestions for possible settlement.

The presence of a mediator can serve several useful purposes: The mediator can encourage and model active listening for the identification of interests; reduce the level of tension between parties; keep the negotiation focused without side-tracking caused by parties' inexperience with negotiation, high emotions, or their other agendas coming into play. A mediator can also promote early agreements on simple issues to increase momentum, help parties save face when conceding, and advance a proposal which would be rejected if it came from the other party. In crosscultural conflicts, the mediator can act as a cultural interpreter, explaining the cultural meanings of behavior to the other party (Cohen, 1996). For example, during the war that we call the Vietnam War (the one that the Vietnamese call the American War), Americans particularly resented the fact that Vietnamese witnesses to physical abuse and torture might respond with laughter. This was seen as proof of their callous attitudes. Someone who has spent time with Vietnamese people could explain that fear, embarrassment, and helplessness might evoke a nervous giggle. A mediator could suggest to a party that he or she should keep an open mind as to the meaning of the other's laughter; that while it may signal amusement, it may also signal fear.

Reviews of research on mediation suggest that when it is effective, participants are usually satisfied, and compliance with the agreed solution is usually high. As would be expected, characteristics of the conflict, the parties, and the mediator all influence effectiveness (Carnevale

& Pruitt, 1992). Mediation is more effective when conflict is moderate rather than intense, when the issues don't involve general principles, and where there is not a severe resource shortage. It is more successful when parties are highly motivated to reach a resolution, are committed to mediation, trust the mediator, and are relatively equal in power. It helps if parties have positive working relationships and a sense of mutual dependence. In terms of mediator characteristics, use of a friendly style, perceived neutrality, and perceived power, which sometimes stems from reputation and authority, also influence effectiveness.

Dealing with Difficulties

Using Deutsch's crude law it could be assumed that the other party to a negotiation or mediation would follow the example of the person initiating the conflict resolution process and act cooperatively in the search for an integrative solution. However, in practice the other party may not be committed to integrative negotiation, or may start cooperatively but revert to power-based methods when the going gets tough. For instance, the party may use threats, personal attacks, inaccurate information, and avoidance, or revert to positional bargaining. A variety of approaches have been suggested for dealing with these situations (see Fisher & Ury, 1996; Wertheim et al., 1998).

Space precludes a detailed description of these here.

If the characters in our scenario are going to use attacks, inaccurate information, and other "dirty tricks," it is likely that any problem that comes up will be difficult to deal with and the group will find it difficult to stay together for very long. However, if one of them "names the game" when dirty tricks are used, or notes

that the discussion has drifted off course and attempts to get the negotiation back on track, they may have more success.

Other Models and Perspectives

There are multiple models of conflict and conflict resolution. Even within the domain of organizational conflict, Lewicki, Weiss, and Lewin (1992) identified 44 major models of conflict, negotiation, and third-party processes (e.g., mediation and arbitration). They note that the emphasis in the field has been on creating models rather than the equally important task of evaluating them, with the result that no models have received definitive empirical support. Models are either descriptive (how negotiators actually behave) or prescriptive (such as the one outlined above, articulating how to go about the process). Among prescriptive models, some are distributive (how to maximize your own gains), others integrative. To give a flavor of the alternatives available, we briefly outline five other prescriptive integrative models, each of which has been shown to be useful in at least some contexts. Since they all adhere to the basic principles described earlier, there are many similarities among them, with differences often being more in emphasis than in actual content or practice.

Fisher and Ury's (1996) much-used *principled negotiation* model involves a four-fold approach, the first three of which are common to the model described above: Separate the people from the problem; focus on interests; and invent options for mutual gain. The fourth aspect is the one which gives this model its name: Insist on objective criteria to judge solutions. Objective criteria seem to fall into two groups: rules about how to distribute resources (on the basis of equality, equity, need, etc.) and those about procedures for decision-making (using precedent, flipping a coin, etc.). Littlefield et al. (1993) note that the use of these criteria is more akin to a

rightsbased approach. Too much emphasis on objective criteria carries the danger of deflecting parties from problem-solving based on interests. It is often possible, however, to incorporate principles or objective criteria into conflict resolution by considering them as legitimate interests which need to be met (e.g., “I am concerned that we use principles of equity in deciding on a solution.”)

Pruitt and Rubin’s (1986) *creative problem-solving* model is distinguished by setting reasonably high aspirations for one’s own gains in the resolution of a conflict, and pursuing these with firmness and commitment. Carnevale and Pruitt (1992) similarly emphasize the need for high aspirations. They argue that effective problem-solving requires negotiators to be both firm and flexible. If both parties are afraid of conflict and therefore not firm, research has shown they achieve lower joint benefit in their solutions. But flexibility is needed about the means to achieve these interests, seeking options which are acceptable to the other party as well as oneself.

Three workers have developed models of conflict resolution which are specifically applicable to large-scale conflicts. Burton’s (1987) *problem-solving conflict resolution* model has been applied principally to deeply rooted conflicts such as the intra-state conflicts in South Africa and Fiji. It starts with carefully analyzing parties and issues. Then the parties are brought into a facilitated interactive situation in which relationships are analyzed in depth, without entertaining proposals or engaging in bargaining or negotiation. When there is an agreed definition of the problem, exploration of possible options begins. “Controlled communication,” a form of abstract problem-solving in which groups meet in private to discuss conflict analytically, is intended to correct misperceptions and thus improve communication.

Kelman's *problem-solving workshops* (e.g., Kelman, 1997) were developed particularly to address the inter-ethnic conflict in Israel-Palestine. The workshops provide a setting where processes central to conflict resolution such as empathy, insight, creative problem-solving, and learning can take place. The workshops involve politically involved but unofficial representatives of the conflicting parties, take place under academic auspices and are facilitated by social scientists knowledgeable about the conflict, groups/cultures involved, and group process. Briefly, the process is, first, to understand and acknowledge both sets of concerns, then to engage in joint problem-solving to develop new ideas for resolving the conflict that would satisfy fundamental needs and allay fears of both parties.

Ronald Fisher (1994) has also focused on ethnic conflict, particularly in Cyprus, Canada, and New Zealand. For him, conflict resolution refers to the *transformation* of a mutually destructive situation to one that is "self-supporting, self-correcting and sustainable for the foreseeable future" (p. 59). He focuses on peace building as an important bridge between peacekeeping and peacemaking. His five goals for conflict resolution are based on humanistic and democratic values: Conflict resolution must transform conflicts in an enduring way (not simply settle disputes or suppress differences); it should use a range of complementary methods suitable to the particular issues; it must address basic human needs and build sustainable relationships between groups; it must be infused into decision making and policy making processes to prevent the causes and escalation of destructive conflict; and it must create social structures involving equity among groups.

A variety of other approaches to conflict resolution rely on creativity. Such workers as Boulding (1983) and Macy (1983) stress creative problem-solving and creative thinking, using

creative visualization, diagramming, movement and role-playing, to address conflict in environmental, peace and feminist contexts. Fogg (1985) presents a wide array of potentially integrative, effective, and creative nonviolent strategies that can be used in diverse situations.

This brief overview makes apparent the extensive overlap among models. Kelman (1997) summarized the situation by pointing out that, despite the diversity in levels and domains of conflict, and in the intellectual origins of the models, certain common insights and approaches to practice emerge: a non-adversarial, cooperative framework; an analytic approach; a problemsolving orientation directed towards an integrative solution; direct participation of the parties involved in shaping a solution; and (sometimes) facilitation by a trained third party.

CULTURE: AN ISSUE IN APPLYING CONFLICT RESOLUTION MODELS

It can be argued that models of conflict resolution share common assumptions because they share a common cultural derivation. Lewicki et al. (1992) note that common assumptions underlie most descriptive and prescriptive models. For example, researchers share the idea that conflict originates from a variety of sources, follows a predictable course, is manifested in many ways and may have positive and negative consequences. Most assume that all types of problems are negotiable and all parties want and are able to negotiate. The literature assumes that there is a definitive way to negotiate well. Responses to conflict are dichotomized into either distributive (win-lose) or integrative (win-win) types, ignoring the possibility of a mix. Models tend to be for two parties, with statements about multilateral negotiations being simplistically extrapolated from bilateral negotiations.

These common assumptions may well reflect a view of knowledge that is Westernized. Most models of conflict resolution have been developed in North America and might be expected to reflect the values and norms of the culture from which they are derived. The tendency to dichotomize, objectify and deal rationally with problems inherent in the conflict resolution literature might be seen as reflecting a monocultural view.

The fact that cultural variation has been neglected is reflected in Carnevale and Pruitt's (1992) review which has only one paragraph on cultural differences in negotiation behavior and preferences for dispute resolution procedures, plus a discussion concluding that laws governing negotiation are different under individualistic and cooperative orientations. Kimmel (1994) critiques conflict resolution approaches and notes the lack of awareness of intercultural differences and objectives.

Research on the relationship between culture and conflict tends to be oriented toward managing difference. The work of Hofstede (1989, 1994; see also Pedersen, this volume) who categorizes cultures on four dimensions—collectivism-individualism, masculinity-femininity, power distance, and uncertainty avoidance—has been influential. Different cultures can be empirically investigated as to their preference for conflict resolution style (e.g., Fletcher, Olekalns & De Cieri, 1998). A shortcoming of the cultural difference approach though, is that it could unwittingly reinforce stereotypes. The Chinese, for example, might be stereotyped as being compliant because they are from a power-distant culture. An Asian researcher would not only be aware of the individual and situational variability in degree of compliance in the face of conflict but also view the Chinese response as normal civilized behavior. The more direct and assertive response recommended in prescriptive conflict resolution models may seem downright rude.

It is informative to see culture as a process which guides and shapes our viewpoints. Encounters with a different culture present an opportunity to examine our own hitherto unchallenged cognitions. Because culture is a framework “for shaping and guiding the thoughts, the actions, the practices as well as the creativity of its members” (Komin, 1991, p. 17), cultural groups tend to share perceptions in a way that does not lead to critical self-reflection.

Hall (1959) describes cultural activities as existing on three levels: formal, informal, and technical. *Formal cultural activities* are based in tradition, are learnt from early childhood and over time come to be seen as natural and admitting no possible alternative: A taboo is either kept or broken. It is very important to be aware of the strength and relevance of cultural differences in this domain. We have been to conflict resolution conferences when these taboos are broken. For example, the serving of roast suckling pig at the opening ceremony of an Asian Conflict Resolution Conference was offensive to many participants whose religions forbade pork. On another occasion, despite careful negotiation with catering staff to avoid serving alcohol when Muslim participants were attending, the after-dinner chocolates contained alcoholic liqueur fillings. There are myriad ways in which a visiting Western mediator might unwittingly be discourteous in South East Asia, such as patting people on the head, sitting barefoot so one's soles are pointed towards the Buddha, touching a Muslim with the left hand, or (if the mediator is female) passing an article to a monk.

Informal cultural learning takes place through imitation. Whole clusters of behavior are learned at one time, often without awareness that learning is taking place or that there are patterns or rules operating. However, if the tacit rules are breached, discomfort and anxiety may result. Much of our conflict resolution behavior can be learnt in this way, through interactions at

home, at school, or in the workplace. Conflict resolution courses can capitalize on this type of learning by using stories drawn from people's lives, role plays, and other techniques that draw from the participants themselves how they deal with conflict in real life situations.

Technical learning is transmitted in explicit terms from the teacher to the student and is characterized by the suppression of feeling, since emotion tends to interfere with effective functioning at this level. Technical changes are specific, readily observed, talked about and transmitted to others. It is easy for conflict resolution courses and models of negotiation and mediation to focus at this level and to neglect the importance of the other forms of learning.

Technical skills and knowledge as a negotiator, mediator or conflict resolution trainer are not sufficient preparation for working in other cultures. Each step of the conflict resolution process is shaped by cultural knowledge that is not necessarily conscious. Even to define a situation as a “conflict” represents a cultural framing. For example, there is no Indonesian word that means conflict, whereas the Chinese would use different words to describe family conflict and national conflict. Let us look at several common conflict resolution techniques.

The use of active listening to uncover feelings or concerns presupposes an ability and wish to directly articulate issues which may normally be dealt with in more tacit and indirect ways within that culture. For example, Sri Lankan people we have worked with prefer to show their concern through bringing special teas or foods rather than saying, “I care about you.” One woman commented that the banning of English had a strong impact on her bilingual family because her adolescent children always discussed their relationships in English, since Sinhala lacked the vocabulary for such conversations.

Expressing your own interests on your own behalf may seem to violate cultural sanctions against selfishness. For example, Confucian-influenced cultures exhort people to think more of the harmony of the group and less of individualistic concerns. In such cultures, delicate hints may be used to convey one's real wishes, hints which may be lost on a Westerner who is not attuned to picking them up.

Brainstorming creative options or packaging workable solutions will not come easily in cultures that emphasize the need to refer problems to the appropriate authority.

Different cultures may have different understanding of key concepts such as confidentiality and neutrality. An example of such a misunderstanding occurred in Australia when an (Anglo) mediator who had agreed to keep certain issues confidential found himself in a group situation where it became clear that everyone in the (Aboriginal) group knew about these matters. He assumed the need to keep silent no longer held and joined in the conversation. His Aboriginal clients were deeply shocked, felt betrayed and insisted he be taken off the case. For them confidentiality has to do with who is empowered to speak about particular matters. The fact that the matters were known did not give him the right to talk about them.

The notion of neutrality may be also be relatively culturally specific. For example, every Aboriginal person belongs to a web of relationships, and every dispute affects the community. Any Aboriginal mediator can thus be seen as an involved insider, rather than an impartial outsider, though of course greater and lesser degrees of distance can be apportioned.

The point we wish to make here is that experience and familiarity with the culture are important. There is a risk that visiting experts in negotiation or mediation will have insufficient knowledge of the formal and informal cultural domains. They will then interpret the behavior of

the parties in terms of their limited experience. We need to be very careful in applying prescriptive models across cultures, to remain open to learning from the other and to be prepared to undertake much more research into how other cultures do actually resolve conflicts. As Tjosvold (1998) points out, “In addition to the present need to manage conflict across cultures, studying conflict in different contexts can challenge and refine present understanding of conflict management. Incorporating ideas and practices of other cultures can develop more robust, elegant theories” (p. 301).

VIEWS OF KNOWLEDGE

Power, rights, and interest-based approaches to conflict draw on different views of knowledge. Most people are used to thinking about conflict in terms of power-based approaches. Some have moved to a predominantly rights-based orientation. To teach and learn conflict resolution may demand a fundamental shift in thinking. In this chapter we have challenged you, the reader, to think differently: for example, suggesting that there are not just two sides to a question, that there may not be a right answer, that a good solution is one which incorporates multiple partial views of reality. In suggesting that conflict resolution approaches depend on a view of knowledge which allows for some degree of subjectivity we are drawing links between peace psychology and some of the traditional areas of psychology, such as “cognition” and “perception.”

Power and rights-based approaches are objective. Power-based approaches depend on being able to collect information, analyze the sources of power and estimate the probable consequences of strategies in a particular context. Effective rights-based approaches necessitate the collection

and weighing of evidence in relation to a set of rules and making judgements which take precedent and community expectations into account.

Effective interest-based approaches have a subjective element and view knowledge as constructed or created. Melville (1998) has drawn attention to the importance of critiques of *positivist* views of knowledge for conflict resolution theory and the difficulty of determining the “facts.” The idea that knowledge has a subjective element does not mean that reality is denied, but rather that conclusions about the nature of reality are seen as tentative working hypotheses open to revision in the light of new information. Good conflict resolution practitioners recognize that knowledge is partial, so different perceptions may be equally valid.

FUTURE DIRECTIONS

In thinking about the applicability of conflict resolution models to the future, it is first necessary to consider what the future might hold. On this basis of current trends, we might plan for a world in which there is an increasing degree of globalization with interdependent economic arrangements served by electronic communication networks enabling the rapid transfer of information. We might welcome increasing democratization among nations but see the power of democratically-elected national governments limited by the economic sway of multinational businesses and the political clout of international government and non-government organizations. In a post-colonial world we might expect diverse voices to be raised, from people or groups who have experience of more than one culture, from people who come from diverse geographical regions and different social positions. We might also anticipate the formalization of regional structures. For example, processes such as the discussion of common values, which underpinned the formation of the European Union, are now taking place in the Asian region. The “realist” view of international relations which saw nations as unitary actors negotiating bilateral

arrangements with a view to maximizing national security and gains becomes increasingly abstracted from the living reality.

The implications of these projections for conflict resolution are even now emerging. Currently most conflicts are intrastate rather than between nation-states. They cut across national lines, and have resonance within Diaspora communities, who can keep in touch through television, fax and Internet and play a significant role. In a talk in Sri Lanka, Galtung (1994) pointed out that thinking about conflict as a two-party dispute over a single issue is a conceptual oversimplification: “I know of no real life conflicts of that type. Real life conflicts have m parties and n issues, and mn can be quite high at times” (p. 3). As the power of nation-states declines, relative to that of intra-state and transnational bodies, the use of power based methods becomes increasingly difficult and less clear-cut. Thus we might predict a move toward the greater use of rights and interest-based methods of conflict resolution at all levels of society, from the personal through the global.

Another way to arrive at a picture of the future is to use visioning exercises to examine alternative possible futures. In asking our students to undertake a meditation exercise and then to draw a picture of the future, we have found that they have a deep concern with environmental degradation and have fears of technology taking over and pushing human beings out. In envisaging an ideal world students have an opportunity to form a positive image of peace and find ways to depict harmony in human relationships and explore their own visions of peace. This exercise of imagination points to disjunction between our model of conflict resolution and the future our students envisage. Conflict resolution models can be very abstract and might be used without locating parties in a physical environment. For example, the assumption that negotiation

occurs indoors is captured by the phrase “putting issues on the table,” whereas Aboriginal people often prefer an outdoor setting. Further, conflict resolution approaches can be very task-oriented and “business like.” They can view people as possessors of problems to be resolved rather than as entities who feel fear and hope, who have dreams and visions. People from a number of cultures that give a higher priority to spiritual issues, and the role of ceremony in their indigenous conflict resolution systems, make a similar critique.

To meet the challenge posed by the future, peace psychologists need to develop more sophisticated models of analyzing conflict to recognize its multilevel and multiparty nature. We have suggested that there is a need to more clearly articulate the role that conflict resolution has in sustaining interdependent relationships. We have indicated that there is a need for research into multiple perspective taking and the development of multiple, flexible, fluid identities which link us not only with human groups but also with the natural environment. In doing this there are opportunities to learn from other cultures. There is also a need to reconcile ourselves with feelings, and see them not only as possible obstacles to a conflict resolution process, but also as an integral part of humanity and a valuable human resource. Cognitively the demand for flexibility and creativity, for working in teams and learning from others, suggests the need to develop a different view of what intelligence is. Research into the use of communication technology to improve conflict resolution processes should also be a high priority. There is much that already exists within psychology which is not currently seen as connected to conflict resolution, but that can be of value in developing more sophisticated models. Thus a research agenda for the future will involve us not only reaching out to disciplines other than psychology

but also in grounding our work in a deeper critical understanding of, and central connection with, our own.

Figure 17.1 Flowchart of the conflict resolution process. Adapted from Littlefield et al. (1993, p. 81).

